



CHAPTER 11

An Act to provide for the payment of gratuities to or in respect of certain former officials of the Government or Parliament of the Sudan; to increase the superannuation allowances of Sir Robert Howe, lately Governor-General of the Sudan; and for purposes connected with the matters aforesaid. [1st November, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Secretary of State may at his discretion pay a gratuity of an amount determined in such manner as the Treasury may approve to, or to the personal representatives of, any person who, being a British subject, satisfies either—

(a) the conditions set out in paragraphs (a), (c), (d) and (e);

or

(b) the conditions set out in paragraphs (b), (c) and (d),

of the next following subsection:

Provided that—

(i) the aggregate of all gratuities paid under this section shall not exceed one hundred and sixty thousand pounds; and

(ii) in the case of any one person, the aggregate of any gratuity paid to or in respect of him under this section and any lump sum payment made to him by the Sudan Government by way of compensation for loss of career shall not exceed the equivalent of eight thousand five hundred Egyptian pounds, the pound sterling being taken to be the equivalent of ninety-seven and a half Egyptian piastres.

(2) The conditions referred to in the foregoing subsection are—

- (a) that the person was accepted before the seventeenth day of July, nineteen hundred and fifty-four, for service towards pension under the Sudan Government Pension Ordinance, 1919;
- (b) that the person was accepted before the said seventeenth day of July for service towards annuity under the Sudan Government's Finance Circular No. 141 dated the fifteenth day of November, nineteen hundred and forty-five (which relates to annuities and gratuities for women officials);
- (c) that the person's service under the Government or Parliament of the Sudan was terminated in such circumstances as are specified in the next following subsection, or that he was retired on medical grounds after the appropriate notice of termination specified in that subsection had been given;
- (d) that the last post held by the person before the termination of his service under the said Government or Parliament was a post in the Sudan or in Cairo;
- (e) that, on the day before the date on which the person was struck off the strength of the service of the said Government or Parliament, he had lost any right to revert to pensionable service in any other public service from which he resigned in order to take up an appointment with that Government.

(3) The circumstances referred to in paragraph (c) of the last foregoing subsection are—

- (a) that the person's service was terminated by the Sudan Government by two months' notice in writing given on or after the seventeenth day of July, nineteen hundred and fifty-four, by reason of the appointment or intended appointment of some other person to the post previously held by that person, or of the suppression of that post, in consequence of the provisions of Annex III to the Anglo-Egyptian Agreement (which relates to posts which might affect the freedom of the Sudanese at the time of self-determination), or in accordance with the provisions of that person's contract of service; or
- (b) that the person's service was terminated either by the Sudan Government or by that person by six months' notice in writing given on or after the first day of January, nineteen hundred and fifty-five; or
- (c) that the person's service was terminated either by the Sudan Government or by that person by three months' notice in writing given on or after the first day of July, nineteen hundred and fifty-five; or

- (d) that the person's service was terminated by that person by three months' notice in writing given within one month of the communication to him of a decision to appoint a Sudanese to a vacancy occurring on or after the seventeenth day of July, nineteen hundred and fifty-four, in a post to which that person would have been entitled on grounds of merit:

Provided that a reference in any of the paragraphs of this subsection to a specified period of notice shall be deemed to include a reference to any shorter period of notice to which the Sudan Government and the person in question had agreed in writing.

(4) In this section, the expression "the Anglo-Egyptian Agreement" means the agreement between the Government of the United Kingdom and the Egyptian Government concerning self-government and self-determination for the Sudan signed at Cairo on the twelfth day of February, nineteen hundred and fifty-three, and presented by the Secretary of State to Parliament by command of Her Majesty in the month of July, nineteen hundred and fifty-three.

2.—(1) The following increases shall be made in the super-
annuation allowances which would otherwise be payable, or Superannuation allowances of former Governor-General of Sudan.
might otherwise be granted, under the Superannuation Acts, 1834 to 1950, and the Superannuation (Diplomatic Service) Act, 1929, to Sir Robert Howe, lately Governor-General of the Sudan, that is to say—

- (a) the annual allowance shall be increased by two hundred and fifty pounds; and
(b) the additional allowance shall be increased by seven hundred and fifty pounds.

(2) This section shall be deemed to have had effect from the sixteenth day of July, nineteen hundred and fifty-five.

3. Any gratuity under section one of this Act, and any increase Expenses.
attributable to the provisions of section two of this Act in the sums payable under the Superannuation Acts, 1834 to 1950, and the Superannuation (Diplomatic Service) Act, 1929, out 19 & 20 Geo. 5
of moneys provided by Parliament, shall be paid out of moneys c. 11.
so provided.

4. This Act may be cited as the Sudan (Special Payments) Short title.
Act, 1955.